



Notification Waiver Determination

Vets Central – Lava Street Veterinary Clinic and Doggy Kinder

Acquisition	VC Operations (WA) Pty Ltd (together with its associated entities, Vets Central) applied for a notification waiver in respect of its proposed acquisition of 100% of the business assets of Lava Street Veterinary Clinic and Doggy Kinder from Longyester Pty Ltd as trustee for the Longyester Unit Trust and Doggy Kinder Pty Ltd, as described in the transaction documents provided as part of the application (the Acquisition).
Determination	The Australian Competition and Consumer Commission has determined under section 51ABV(1)(a) of the <i>Competition and Consumer Act 2010</i> (Cth) that the Acquisition is not required to be notified.
Date of determination	3 August 2026

Parties to the Acquisition	The acquirer, Vets Central, is an Australian-owned veterinary group that owns and operates 84 first opinion veterinary practices across Australia and New Zealand. In Australia, Vets Central's practices provide core and ancillary veterinary services, for household pets as well as livestock, and other exotic species. The services primarily include routine, planned, and emergency veterinary services (excluding after-hours services). Vets Central currently operates 9 veterinary clinics in Victoria. The target, Lava Street Veterinary Clinic and Doggy Kinder, is a full-service veterinary practice which also provides a dog daycare facility in the Warrnambool area of Victoria. The business provides a range of first opinion core and ancillary veterinary services for household pets (extending to exotic pets) in the local area.
Explanation for determination	In making this notification waiver determination, the Australian Competition and Consumer Commission (the ACCC) has considered the information provided with the notification waiver application and had regard to the factors in section 51ABV(2)(b) of the <i>Competition and Consumer Act 2010</i> (Cth) (the Act). Based on the information provided in the application, the ACCC considers that the Acquisition is unlikely to give rise to any material lessening of competition. In particular: - there is no horizontal overlap between Vets Central and Lava Street Veterinary Clinic and Doggy Kinder in the supply of veterinary services in the Warrnambool area and a small horizontal overlap by number of clinics in Victoria; and - there are alternative suppliers of veterinary services in the Warrnambool area and more broadly at the state (Victoria) and national level.

	The ACCC has also had regard to the likelihood that, if the Acquisition were put into effect, the notification thresholds determined under section 51ABP(1) of the Act would apply. While the ACCC considers that the notification thresholds are likely to be met, given that material competition concerns are unlikely to arise, the ACCC has determined that the Acquisition is not required to be notified. The ACCC considers that the determination is consistent with the object of the Act and the interests of consumers in promoting competition. For more information about the ACCC's approach to considering notification waiver applications and to assessing competition effects more generally, see the ACCC's interim guidance on notification waivers and merger assessment guidelines.
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Determination made by Commissioner Williams pursuant to a delegation under section 25(1) of the Act